TERMS AND CONDITIONS

The website www.lenskart.com ("Website") is owned and operated by Lenskart Solutions Limited (formerly known as Lenskart Solutions Private Limited) a private limited company duly incorporated under the provisions of the Companies Act, 1956 (hereinafter referred to as 'Company') and having its registered office at Plot No. 151, Okhla Industrial Estate, Phase-III, New Delhi-110020. These Terms and Conditions (hereinafter referred to as 'Agreement') constitute an electronic record within the meaning of applicable law and set out the terms and conditions relating to access and use of the Website by a visitor or a registered user (hereinafter referred to as the "End User", "You" or "Your")

1. Policy for NDNC

- By using the website and/or registering yourself at Lenskart.com you authorize us to contact you via email or phone call or sms and offer you our services, imparting product knowledge, offer promotional offers running on website & offers offered by the associated third parties, for which reasons, personally identifiable information may be collected. And irrespective of the fact if also you have registered yourself under DND or DNC or NCPR service, you still authorize us to give you a call from the Lenskart for the above mentioned purposes till 45 days of your registration with us. This Privacy Policy covers Lenskart's treatment of personally identifiable information that Lenskart collects when you are on the Lenskart site, and when you use Lenskart's services. This policy also covers Lenskart's treatment of any personally identifiable information that Lenskart's business partners share with Lenskart. This policy does not apply to the practices of companies that Lenskart does not own or control or to people that Lenskart does not employ or manage. Lenskart collects personally identifiable information when you register for a Lenskart account, when you use certain Lenskart products or services, when you visit Lenskart pages, and when you enter promotions. Lenskart may also receive personally identifiable information from our business partners. When you register with Lenskart, we ask for your first name, last name, contact no, email, Date of birth and gender. Once you register with Lenskart and sign in to our services, you are not anonymous to us. Also during registration, you may be requested to register your mobile phone and email id, pager, or other device to receive text messages, notifications, and other services to your wireless device. By registration you authorize us to send sms/email alerts to you for your login details and any other service requirements or some advertising messages/emails from us.
- If you do not agree to these terms and conditions, terms and conditions attached to any sale, purchase, warranty, use of our website and/ or our mobile application, then the purchase of any products or services through the website and / or the mobile application is prohibited. Continued use and access of the website, mobile application, any purchases and the services shall be deemed as the acceptance of our terms and conditions, policies and their potential changes.

2. ACCEPTANCE OF TERMS OF USE

- PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY. BY ACCESSING THIS WEBSITE YOU AGREE TO BE BOUND BY THE TERMS AND CONDITIONS BELOW. THE COMPANY RESERVES THE RIGHT TO ALTER, AMEND AND MODIFY THESE TERMS AND CONDITIONS AT ITS SOLE DISCRETION. ALL SUCH AMENDMENTS AND MODIFICATIONS WILL BE DULY NOTIFIED ON THIS WEBSITE. IF YOU ARE NOT AGREEABLE TO THE TERMS AND CONDITIONS WE REQUEST YOU NOT TO ACCESS THIS WEBSITE. You expressly agree to be bound by this Agreement, irrespective of whether You are a registered member or a visitor, by using the information, tools, features and functionality located on this Website. As such, You agree to be bound by the terms and conditions detailed herein. The Company recommends that, irrespective of whether You are a Visitor or a Registered Member who proposes to utilize the Service provided by the Company, to carefully read all the terms and conditions as provided herein. The said terms and conditions displayed are recommended to be saved for any future reference and for Your own records or You may even take a print out of the same. The Company expressly states that the Services provided or offered by this Website and the Agreement which You are required to be bound by is meant only for individuals/entities who are permitted to enter into and be bound by a legal contract as per the prevalent laws. In the event, if You are not legally permitted to enter into a contract or are for some reason either due to Your age or any other reason not permitted to enter into an Agreement, then, You are not permitted to utilize the Services provided by this Website or enter into this Agreement. In the alternative You could order Products under parental supervision. Your acceptance of this Agreement and utilization of Services implies and You expressly [illegible] or operating under parental supervision and [illegible] your parents to this Agreement. In the event [illegible] tities, in any capacity, then, You expressly [illegible] them. By entering into this Agreement, You [illegible] any entities to this Agreement. The Services [illegible] specific purpose of enabling Users to [illegible] igh end brands (collectively, "Products"). It is [illegible] ranty or any professional advice and is a mere [illegible] agree and acknowledge that You understand this limited and restricted use, and agree that You will not rely on the information and materials contained in this Website for any

By clicking "Accept All Cookies", you agree to the storing of cookies on your device to enhance site navigation, analyze site usage, and assist in our marketing efforts.
Cookie Policy

Cookies Settings

Accept All Cookies

purposes except as is intended. You further agree that in all actual matters, You are ultimately responsible for determining Your specific requirements. You are strictly prohibited from unauthorized use of our systems or this Website/s, including but not limited to unauthorized entry into our systems, misuse of passwords, or misuse of any information posted to this Website. You acknowledge that the Company may disclose and transfer any information that You provide through this Website to (i) our affiliate or information providers, (ii) to any third party but strictly with Your permission, or (iii) if we are legally bound to disclose any information due to compulsions under law. You consent to the transmission, transfer or processing of such information to, or through, any country in the world, as we deem necessary or appropriate, and by using and providing information through this Website You agree to such transfers. You expressly agree and acknowledge that usage of the Website/s may be monitored, tracked and recorded. As such, You expressly consent to such monitoring, tracking and recording. You are responsible for being familiar with the current version of these Terms and Conditions posted on the Website during each session. By the continued accessing of this Website or the Services, You implicitly agree to be bound by the revised terms and conditions. Any such revisions will be duly posted on this Website and the Company may, if it chooses, send you an e-mail in this regard.

3. General Terms and Conditions

PRODUCTS (0) X

You have not selected any products to compare. Please add products of your choice and view here.

1. Returns and exchange of the products will be dor ate of delivery.
2. We offer a 30-day, no-questions-asked return o date of delivery /collection from our stores on all progressive and bifocal eyeglasses.
3. By choosing to go for this offer, the customer her as studied these detailed Terms and Conditions and agrees to be bound by the same
4. Every person who desires to avail this offer may d ent inquiry, investigation and analysis and shall not have any claim against Lenskart, its employees, d r affiliates whatsoever by reason of any loss which may be suffered by such person consequent to o e, whether by reason of anything stated or omitted to be stated herein.
5. Lenskart reserves the right to amend or modify these terms (including price) without giving any kind of prior intimation.
6. These T&C's are governed under the laws of India. All disputes will be settled in the exclusive jurisdiction of the courts of New Delhi.
7. The product images shown under this offer are for illustration purposes only and may not be an exact representation of the product.
8. The Company reserves the right to change the product images and specifications at any time without any prior notice.
9. For more information or queries, get in touch here
10. support@lenskart.com.

*In additions of these the terms of use on the Lenskart's website shall also be applicable.

4. T&C FOR LKCASH and LK CASH+

Lenskart Cash terms

1. These are the general terms applicable to the discount provided under Lenskart Cash and the specific terms of any offer will be mentioned under products listings/ will be shared separately and will form part of these terms.
2. LK cash redemption will always be limited to a certain amount/percentage of total order which will be defined under the product listings and will form part of these terms.
3. Valid once per user during the offer period.

Lenskart Cash +

Gold Max Membership Discount

1. Being Gold Max member or having Gold Max Membership in cart is essential to avail offer by any Customer.
2. 10% LK cash+ on 1st purchase and 5% LK cash+ on subsequent purchase until the validity of Gold Membership will be available to the Customer.
3. Purchase amount means total paid amount by the Customer.
4. LK cash+ validity is 364 days or expiry of Gold Membership whichever is earlier.
5. LK cash+ redemption is available up to a maximum limit of INR 5,000. We reserve the right, at any time, without prior notice and without assigning any reason whatsoever, to add/alter/modify/change or vary these terms and conditions or to replace, wholly or in part, this offer by another offer, whether similar to this offer or not, or to extend or withdraw it altogether.

Any other offers apart from Gold Max Membership

- LK cash+ redemption is available up to a maximum limit of INR 5,000. Valid once per user during the offer period.
- Any promotional discount offered in the form of Lenskart Cash + will have different expiry and will differ on case to case basis.
- These are the general terms applicable to the discount provided under Lenskart Cash + and the specific terms of any offer will be mentioned under products listings/ will be shared separately via Whatsapp messages, emails or any other medium of communication and the same will form part of these terms.

Product eligible for the discount/ offer under for LK Cash and LK Cash+

- Offer is applicable on select products across select categories on the platform.
- Offer will also be listed on the product page, please check before making the purchase.

Other key offer terms for LK Cash and LK Cash+

- If an order is cancelled, the offer may be made available to customer for utilization again in our sole discretion.
- The amount represented in the wallet and / or as Lenskart Cash/ Cash+ under no circumstances should be considered as money or money equivalent. It is strictly in the nature of a discount provided to you on our products.
- You cannot withdraw any amounts/ Lenskart Cash/ Cash+ from your wallet and you do not have ownership rights on these discounts.
- Any Lenskart Cash/ Cash+ balance is a discount eligibility digital voucher which can be utilized to avail discounted products in the manner noted herein. Unless specifically mentioned otherwise, the amount in your wallet as balance/ Lenskart Cash/ Cash+ is to be solely and strictly utilized as a discount against products on priority as against any other utilization that may be permitted by the Company.
- In this regard **"Discounts"** shall include any bonus, cashback, extra cash or any other incentives that may be provided by the Company, at its discretion, as a part of pricing strategy as an adjustment against the price charged from the user in such manner as may be prescribed under these terms (as may be applicable)

LK Cash and LK Cash + Discount Redemption Process

Online purchases

- Login to Lenskart.com (Mobile App/Mobile Site/Website).
- Add eligible products to the cart.
- Proceed to checkout.
- Apply the Lenskart Cash/ Cash+ on payments page in case you have such discount. In case there is no Lenskart Cash/ Cash+ offer available with you, the whole amount will be required to be paid as noted below.
- Lenskart Cash / Cash + is in the nature of a 'discount' on the purchase of eligible product, remaining amounts can be paid by preferred method by the user.
- Complete your transaction using options provided.
- Users will be able to view the discount amount eligible on the payments page during checkout.

Offline purchases

- At the store/ offline purchases, the coupon code can be applied on the eligible products while billing and checking out.

Where should I contact in case I didn't receive the cashback after an eligible purchase?

If you are eligible Lenskart Cash/ Cash+ offer as per the order summary page and you do not receive the same, please contact Lenskart customer care from the help section on Lenskart application and / or website.

LK Cash and LK Cash+ eligible users

- The offer is open to all residents of India holding a valid and active Lenskart account.

Other terms, conditions and policies of Lenskart apply to the offer/ LK Cash / LK Cash +

By participating in the offer on any eligible sale for Cash/ Cash+, Customers agree to be bound by:

- These terms and conditions (T&C);
- The terms of use, privacy policy and other relevant documentation including any modifications, alterations or updates thereof, that are published on the platform, website and our application;
- Warranty terms and conditions;
- All applicable terms and conditions of Lenskart; and
- Offer specific details/ terms and conditions.

This offer is also subject to following conditions:

- This offer is only applicable on transactions made through payment options made available on our website/ stores.
- In case of cancellation of your order, the transaction will not qualify for the offer.
- Lenskart reserves the right to disqualify the user(s) from the benefits of the offer, if any fraudulent activity is identified as being carried out for availing the benefits under the said offer or otherwise by use of the account.
- Any person availing this offer shall be deemed to have accepted these terms and conditions.
- Lenskart reserves the right, at any time, without prior notice and without assigning any reason whatsoever, to add/alter/modify/change or vary these terms and conditions or to replace, wholly or in part, this offer by another offer, whether similar to this offer or not, or to extend or withdraw it altogether.
- Users are not bound in any way to participate in this offer. Any participation is voluntary, and the offer is being made purely on a best effort basis.
- Nothing herein amounts to a commitment by Lenskart to conduct further, similar or other offers.
- The above offer is by way of a special offer for Lenskart registered users only and nothing contained herein shall prejudice or affect the terms and conditions of the Lenskart terms and conditions of use and privacy policy. The terms of the above schemes offer(s), shall be in addition to and not in derogation of the terms contained in the Lenskart terms and conditions of use and privacy policy.
- You, the user, understands that Lenskart may use your transactional data for purposes of this offer and for checking your eligibility for their products and services and by participating in this offer, you consent to this sharing and using of your data for these purposes.
- Under no circumstance will the offer/cashback being offered be settled with cash in lieu by Lenskart.
- Returned transactions, disputed or unauthorized/ fraudulent transactions will not be considered for the offer.
- This offer cannot be combined with other offers including any other discount / coupon code.
- Either parties shall not be liable for any failure for any technical issues attributable to the either Parties because of which the transaction made by the user was not successful. Parties shall mutually resolve the issues pertaining to their respective breaches. Further, each party shall solely be liable to the user for wrongful acts/omissions attributable to them.
- The user shall indemnify and hold Lenskart harmless against all damages, liabilities, costs, expenses, claims, suits and proceedings (including reasonable attorneys fee) that may be suffered by Lenskart as a consequence of (i) violation of these terms and conditions, of the terms of user agreement, privacy policy (subject to change) published on the platform, by user; (ii) violation of applicable laws by user; and (iii) any action or inaction resulting in willful misconduct or negligence on the part of the user.
- All government levies like sales tax, goods and services taxes, tax deducted at source, any local tax, octroi etc.shall be payable by the user as applicable at the time of the respective offer.
- This offer shall be subject to all applicable laws, rules and regulations which are in existence and which may be promulgated anytime by any statutory authority.
- This offer is valid only in India. The minimum age of such a user shall be 18 years.
- This document is an electronic record in terms of Information Technology Act, 2000, and the Rules thereunder as applicable and the amended provisions pertaining to electronic records in various statutes as amended by the Information Technology Act, 2000. This electronic record is generated by a computer system and does not require any physical or digital signatures.
- We reserve the right, at any time, without prior notice and without assigning any reason whatsoever, to add/alter/modify/change or vary these terms and conditions, website, mobile applications, our general terms and conditions of use, and/or the policies listed in this document, or to replace, wholly or in part, an offer by another offer, whether similar to this offer or not, or to extend or withdraw it altogether.

Customer's right to avail the benefits under the Offer shall continue until such time that Lenskart, at its sole discretion and without the obligation of a notice, terminates the offer. The Customer may terminate these at any time by uninstalling the Lenskart App. These Terms will automatically terminate if Customer fails substantially to comply with them. Upon termination by Customer, or by Lenskart due to Customer's breach of these terms, Customer may not be entitled to any outstanding benefits of the offer.

These terms and conditions must be read in conjunction with the other terms and conditions of the usage of the Lenskart App and/or Lenskart's website available at
https://www.Lenskart.com.

5.DESCRIPTION OF SERVICE AND PRODUCTS

- The Company provides an opportunity for You to purchase the Products from high end manufacturers and retailers. Upon placing order, the Company shall ship the Product to You and will be entitled to its payment for the Services. All Products and information displayed on the Website/s constitute an "invitation to offer". Your order for purchase constitutes your "offer" which shall be subject to the terms and conditions as detailed in this Agreement. The Company may accept or reject Your offer in its sole discretion which cannot be contested by You. The Company, to the best of its knowledge, has displayed or attempts to display on the Website/s as accurately as is possible, colours of the Products that is displayed on the Website/s. However, the colours visible to You is solely dependent on Your monitor. Hence, no guarantee is provided by the Company regarding Your visibility of the colours on the Website/s. The Company does not provide any warranty or guarantee that the Product descriptions are accurate, complete, reliable, current, or error-free. If a Product offered by the Website/s is not as described, Your sole remedy is to return it in unused, unsoiled and resale condition. The ranking of the products on the platform is based on a combination of date of launch and popularity of the product. Products which are launched recently appear higher over products launched in the past. Similarly, the products which are popularly purchased by customers rank higher over products which are less popular. The final ranking is based on the combination of these two factors.

6. YOUR OBLIGATION AND COVENATS TOWARDS THE PRODUCTS

- In addition to Your other covenants in this Agreement, by ordering Product/s on the Website/s You acknowledge and agree that:

  a. You have a written and valid prescription from a doctor regarding your prescription glasses or lenses and the information supplied to the Company will be accurate;

  b. You consent to the Company contacting your doctor to verify the authenticity of the prescription if required;

  c. That any non-delivery or wrong delivery of the Products by the Company due to error in the information provided by You, then, any re-delivery cost in addition to the initial cost will be billed to You;

  d. All information provided by You including your contact details, name and address, bank or credit card details are Yours and authentic and there is no misrepresentation or fraudulent act from Your end;

  e. That before placing an order You will check the Product description carefully. By placing an order for a Product You agree to be bound by the conditions of sale included in the item's description.

7. INFORMATION REQUIRED FROM YOU

- Upon Your acceptance of agreeing to be a member and avail services from our Website/s, we would request You certain basic information for registration. Once You provide us with the details, we would request You for additional information in order to provide You with the services. However, we will not request You for any personal information or identity disclosure. All information provided form You will be treated as private and confidential. The same is more fully detailed under clause in Privacy Policy and Security below. In compliance with this policy we disclose to our End-Users the usage of a third-party technology (UXCam) for data collection and comply will all applicable laws, rules and regulations, including screen recording of sessions within the scope of Lenskart Android app (Version 3.3.1 only). UXCam Inc. provides a software development kit which allows to record and analyse user behavior in mobile apps (the “Service(s)”). We agree that we will not provide any Sensitive Data to UXCam. UXCam shall use and maintain Customer Data only as set forth in this Agreement and the UXCam Privacy Policy available at www.uxcam.com/privacy, as may be updated from time to time.

8. ORDER FOR AND SUPPLY OF PRODUCTS

a. You will have to submit Your Order for the purchase of the Product as detailed under the Website/s or you can e-mail us at
b. support@lenskart.com.
or contact us at
c. 1800-202-4444
.

d. Once the order is submitted it an express intention to purchase the Product and the same may not be cancelled except as provided hereunder.

e. Based on the information provided by You and subject to the Company’s verification of the same, the Orders will be accepted by the Company for processing.

f. All orders will be processed once the Company receives the payment for the Product.

g. You acknowledge that with respect to prescription glasses the Company reserves the right to verify the same with Your prescribing doctor as well as independent qualified optician. And the acceptance of the order by the Company is subject to the same.

h. All orders will be confirmed via e-mail.

i. The Company will use its best efforts to ensure that order placed by You is successfully processed subject to the availability of the Product/s. In the event the Product/s is sold out or unavailable, the Company will intimate You regarding the same and either refund Your money or provide you with an opportunity to purchase a different Product of the same value.

9. PRICING AND PAYMENT

- a. The prices for Product/s are described on the Website/s and are incorporated into these terms by reference. All prices are in Indian rupees. The prices, products and services are subject to change at the Company's discretion

  b. All prices are inclusive of any tax that may be required to be remitted to tax authorities.

  c. The Company will use its best efforts to ensure that the accuracy of the prices and price related information stated on the Website/s. The Company does not make any representation that the prices quoted on the Website/s will match the offers provided by stores.

  d. In the event of any inadvertent mistake by the Company in quoting the price, the Company will notify You of the error before Your payment is processed. You will then have the choice to either accept the correct price or to cancel Your Order.

  e. The Company accepts the following form of payments: a) Online payment via Credit Card, Debit Card, Net Banking and Paypal b) Cash on Delivery on limited locations which is subject to our return / refunds policy; c) Cash Deposit on our bank account.

  f. You agree, understand, confirm and state that the card details provided by You to transact on the Website will be correct, accurate and is owned by You. In the event You use the card belonging to any third party, then, You confirm that you have been authorized to or expressly permitted by such third party to use the card for making payments.

  g. The Company will not be liable for any credit card fraud. The liability for use of a card fraudulently will be on the User and the onus to 'prove otherwise' shall be exclusively on the User.

  h. In addition to all other remedies available under law and equity and as detailed under this Agreement, the Company reserves the right to recover the cost of Product/s, collection charges, attorney's charges etc., from an User using the Website/s fraudulently. Further, the Company reserves the right to initiate legal proceedings against such persons for fraudulent use of the Website/s and any other unlawful acts or acts or omissions in breach of these terms and conditions.

  i. It is clarified that Lenskart does not charge any fee or charges for the payments. If any specific charges or fee is charged by the payment gateways, the same will be specifically communicated to You in course of the transaction.

10. DELIVERY AND CANCELLATION

- (a) The Company expressly disclaims any guarantee of exactness as to the finish and appearance of the final Product/s as ordered by You based on the display on the Website/s. The quality of any Product/s, Services, information, or other material purchased or obtained by You through the Website/s may not meet your expectations. There may be alteration with respect to you Order. This will be intimated to you by the Company. If you do not agree with the same, the Company will provide you an opportunity to either receive a full refund or a voucher to be redeemed against the purchase of the alternative Product of the same value. (b) Title and risk of loss for all Product/s ordered by You shall pass on to You upon the Company's shipment to the shipping carrier. (c) The Company will make the delivery on a 'best effort' basis after acceptance of Your order. Subject to events beyond the Company's control, the Product/s will be shipped within 7 days of the acceptance of the order. (d) The Company will communicate the dispatch details to You and will ship the Product/s to the mailing address provided by You while placing the order. If you do not receive the Product/s within a reasonable period of time, You should immediately notify the Company. (e) You have an obligation to forthwith check the Product/s for accuracy upon receipt of the same. (f) The Company reserves the right to cancel an order in case the order request is not acceptable to the Company. Upon such cancellation, the Company will refund the money to You. Any such cancellation shall be at the sole discretion of the Company and You will have no right to contest the same. The reasons for cancellation could be due to non-availability of the Product/s, in accuracy in Product or pricing information or due to reasons of any fraud or wrong usage of payment mechanism adopted by You. Any cancellation will be intimated to You by the Company. (g) In the event You desire to cancel any order, then, such cancellation must be done prior to the 's dispatch of the Product/s to you. Once dispatched, the Company will not accept any cancellation request from Your end.

11. LINKS TO THIRD PARTY SITES

- As part of availing the Services, You as a member will provide us Your personal information either to retrieve or collect data or information from third party websites. Such third party websites may be maintained by such financial institutions with whom You have an account, bank with or have created certain liabilities. The Company does not and cannot assume any responsibility or accuracy for such information or data maintained by such third party either in terms of updation, accuracy, deletion, non-delivery or failure to store data, communications, etc. The Website may provide, or third parties may provide, or the Website may contain links to other World Wide Web sites or resources. The responsibility for the operation and content of those websites shall rest solely with the organization identified as controlling the third party website and will be governed by separate

terms and conditions. Links are provided for convenience and inclusion of any link does not imply endorsement in any way of the site to which it links. Because the Company has no control over such sites and resources, You acknowledge and agree that the Company is not responsible for the availability of such external sites or resources, and does not endorse and is not responsible or liable for any content, advertising, products, or other materials on or available from such sites or resources. You further acknowledge and agree that the Company shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with use of or reliance on any such content, goods or services available on or through any such site or resource. In connection with the lead generation services we provide, you may be redirected to third-party platforms to complete your purchase. Your use of such third-party platforms or any transactions with third parties will be governed by the terms of use of those platforms or your contract with the third parties. The Company has no involvement in or responsibility for any actions you take after being redirected to a third-party platform and will not be liable for any services or products purchased from such third parties.

12. REGISTRATION AND USE

- You agree and understand that You are responsible for maintaining the confidentiality of all information provided to the Company while registering Yourself, which includes Your login ID, e-mail address and the passwords for the same. You are fully responsible for all activities that occur under Your e mail address password or account and You shall ensure that You exit from Your account at the end of each session. The Company will send all correspondences, notices and any other communication to the e-mail address furnished by You. In case of any change in the said e-mail address, it is Your duty to update or change the same. The Company shall maintain utmost secrecy and use all the security measures to ensure that the information is not misused by any third party. In the event of Your becoming aware of any unauthorized or misuse of the information provided by You to the Company, You are requested to forthwith contact the Company at Lenskart Solutions Limited (formerly known as Lenskart Solutions Private Limited), –Plot No. 151, Okhla Industrial Estate, Phase-III, New Delhi-110020. The Company cannot and will not be liable for any loss or damage arising from Your failure to comply with this Section.

13. LEGAL USES

- Further, You agree and understand that Your right to access and use the Services offered on this Website is personal to You and is not transferable by You to any other person or entity. You understand that You are authorized to access and use the services only for legal and lawful purposes. You further undertake and state that by using the services You are in no way impersonating or misrepresenting any person or entity. All services availed are for Yourself only. In the event You are representing individual/s, company/ies, third parties or any entities, You undertake and state that You are authorized to represent such individual/s, company/ies, third parties or any entities. You shall be solely responsible for the consequences arising out of such acts and the Company shall not be held responsible or liable in anyway to any person or entity. Any changes in Your registration information must be duly updated by You. Your access and use of this Website may be interrupted from time to time for any of the several reasons, including, without limitation, the malfunction of equipment, periodic updating, maintenance or repair of the Website or other actions that the Website, in its sole discretion, may elect to take. We at the Company utilize our best efforts to provide the Services without any interruptions or hindrance, however, we do not warrant that the function, operation, security or accessibility of the Website will be uninterrupted or error-free, that defects will be corrected, or that this Website or the server that makes it available will be free of viruses or other harmful elements. As a user of the Website, You agree that Your access will be subject to these terms and conditions and that access is undertaken at Your own risk. We shall not be liable for damages of any kind related to Your use of or inability to access the Website

14. STORAGE, DELETION OR TRANSPORT OF DATA

- The Company states that the data provided by You shall belong solely and exclusively to You. As such, You are permitted to remove or delete the data, so provided, either in full or any portion, at any point in time as You desire. The Company requests You to notify the Company of such removal or deletion. In the event, You desire the Company to remove or delete all or any portion of the data belonging to You, then, the same needs to be provided in writing to the Company. Upon receipt of such written request, the Company will do the needful forthwith and notify You of the same. The Company will not retain any copies of such data on its server or in any other place. In this regard, the Company warrants that it cannot access such deleted material at any point in time. Any contact, information or access that the Company had towards such data or material or accounts will cease forthwith. However, certain portions of Your data, which the Company had maintained on its servers may remain either in backups or in transaction logs. These are maintained only for the specific purpose of backup or to provide Services to You in the event of any malfunction or damage to our server in order to ensure continuity of our service without disruption

15. COMMUNICATION

- The Company may send you communication, notices or alerts from time to time. These alerts and communication will be sent automatically by the Company to You. Please be informed that you have agreed to receive any type of communication including but not limited to emails, SMS, phone calls or any other mode of communication from us that is transactional, promotional & informational in nature. In case You have suppressed the receipt or disabled or marked alerts or communication in general to be junked, the Company recommends You to revise the same and activate the receipt of alerts to Your proper destination. As such any communication from our end will be related to the Services and not any marketing or spam mails. Changes to Your email address will apply to all of Your alerts. Any e-mail which is sent by the Company or through any of the websites mentioned above, its contents and attachments, if any, are intended solely for the attention of the addressee/s and may also be privileged. If You are not the addressee You may not copy, forward, disclose any part of any message received or its attachments and if You receive a message in error, please delete the said message from Your system and notify us immediately. You agree and acknowledge that internet communications cannot be guaranteed to be secure or error free. Any information sent via internet could be intercepted, corrupted, lost or contain viruses. The Company and the Website therefore does not accept

responsibility for any errors or omissions in messages received by You which may arise as a result of internet transmission.

16. RIGHTS GRANTED BY YOU

- As the provision of Services includes You providing us with information, data, passwords, usernames, personal identification numbers and other materials and contents, suggestions, ideas, feedback, etc., You are hereby expressly granting us the license and right to utilize the same for and on Your behalf in order to provide the Services. The Company may or will use such information with the sole purpose for providing You the required Services and not for any other purpose. As such, You hereby warrant and represent that You are duly authorized to submit or represent the third party on behalf of whom You are providing these information to the Company. Further, You acknowledge and agree that these materials, suggestions, feedback and information can be utilized without any obligation or restriction on the Company in terms of payment of fee or any other limitations for marketing, promoting, advertising or other purposes. By using the Service, You expressly authorize the Company to access Your accounts maintained by identified third parties, on Your behalf as Your agent. When You use the specified feature of another additional account of the Service, You will be directly connected to the website for the third party You have identified. The Company will submit information including usernames and passwords that You provide to log you into the site. You hereby authorize and permit the Company to use information submitted by You to the Service (such as account passwords and users names) to accomplish the foregoing and to configure the Service so that it is compatible with the third party sites for which You submit Your information.

17. YOUR POSTINGS ON WEBSITE

- We, as part of our Service, encourage and permit You to post Your messages or content on any publicly available forums, blogs and other locations on the Website. By using or posting messages or data or any other information on such forums, blogs and other public locations, You expressly agree that You and only You, are responsible for all the matters contained in such content. You further, represent and warrant to us that You have all the necessary rights to post such messages or information or content and grant us a perpetual, worldwide, royalty free, non-exclusive, transferable and sub licensable right to use, reproduce, distribute, display, modify, amend, perform, etc of such content or information to promote, modify or redistribute this Website, including preparation of any derivative works thereof, in any form and through any medium without any restrictions thereof. You expressly agree that all the rights granted under this paragraph will also be available to each and every user of this Website. Further, if You intend to use a forum, a blog or any other feature available on this Website, then, You should make an independent and informed choice about submitting Your personal identifiable information. All personally identifiable information submitting on such forums, blogs or community features can be read, collected or used by any third party. There is a danger of such information being misused or misappropriated. We do not have control over such actions and we are not responsible or liable for the personally identifiable information that You as a user have chosen to submit on a public platform. In case of any violation of this condition, then, the Company reserves the right to forthwith stop your participation on such public forums.

18. INTELLECTUAL PROPERTY

- You acknowledge and agree that this Website and any necessary software used in connection with the Website contain proprietary and confidential information that is protected by applicable intellectual property and other laws. You further acknowledge and agree that any content or software on this Website, including its “look and feel” (e.g., text, graphics, images, logos and button icons), photographs, editorial content, notices, software (including html-based computer programs) and other material is protected by national and international laws relating to copyrights, trademarks, service marks, patents or other proprietary rights. Except as expressly authorized by the Company You agree not to modify, rent, lease, loan, sell, distribute or create derivative works based on this Website, the Services offered thereto or any software thereto, in whole or in part. You acknowledge that the entire Website and its contents including the software is owned or duly licensed to the Company and are protected by the Copyright laws in India and under international treaty provisions. All trademarks, service marks, and logos used and displayed on this Website are registered to and/or owned by their respective owners. Nothing on this Company Website should be construed as granting, by implication, estoppel, or otherwise, any license or right to use any of the trademarks, service marks and logos displayed on the Website, without the prior written consent and permission of the Company or the respective owners. You may download or print a copy of information provided on this Website for Your personal, internal and non-commercial use only. Any distribution, reprint or electronic reproduction of any content from this Website in whole or in part for any other purpose is expressly and explicitly prohibited without our prior written consent.

19. PROHIBITED ACTIVITIES

- You agree NOT to do to the following: (a) upload, post, email, transmit or otherwise make available any content that is unlawful, harmful, threatening, abusive, harassing, tortuous, defamatory, vulgar, obscene, libelous, invasive of another's privacy, hateful, or racially, ethnically or otherwise objectionable; (b) impersonate any person or entity, including, but not limited to, officials, directors, employees, agents, authorized representatives, forum leaders, guides or hosts, or falsely state or otherwise misrepresent any information or accounts; (c) forge headers or otherwise manipulate identifiers in order to disguise the origin of any content or material transmitted or provided through the Site; (d) Collect or store personal data about other users; (e) Interfere with or disrupt the Website or servers or networks connected to the Website, or disobey any requirements, procedures, policies or regulations of networks connected to the Website; (f) Intentionally or unintentionally violate any applicable local, state, national or international law; (g) Upload, post, email, transmit or otherwise make available any material that contains software viruses or any other computer code, files or programs designed to interrupt, destroy or limit the functionality of any computer software or hardware or telecommunications equipment; (h) Upload, post, email, transmit or otherwise make available any unsolicited or unauthorized advertising, promotional materials, "junk mail," "spam," "chain letters," "pyramid schemes," or any other form of solicitation, except in those specific areas that may be designated for such

purpose of posting such mails or messages by the Company; (i) Use any robot, spider, scraper, deep link or other similar automated data gathering or extraction tools, program, algorithm or methodology to access, acquire, copy or monitor this Website, either in whole or part; (j) Use or attempt to use any engine, software, tool, agent, or other device or mechanism (including without limitation browsers, spiders, robots, avatars or intelligent agents) to navigate or search this Website, other than the search engines and search agents available through the Service and other than generally available third-party web browsers (such as Microsoft Explorer); (k) Attempt to decipher, decompile, disassemble, or reverse-engineer any of the software comprising or in any way making up a part of this Website or the Service. (l) post or transmit any message, data, image or program that would violate the property rights of others, including unauthorized copyrighted text, images or programs, trade secrets or other confidential proprietary information, and trademarks or service marks used in an infringing fashion. (m) You may not interfere with other Users' use of the Service, including, without limitation, disrupting the normal flow of dialogue in an interactive area of this Website, deleting or revising any content posted by another person or entity, or taking any action that imposes a disproportionate burden on the Service infrastructure or that negatively affects the availability of the Service to others. You agree that any employment or other relationship You form or attempt to form with an employer, employee, or contractor whom You contact through areas of this Website that may be designated for that purpose is between You and that employer, employee, or contractor alone, and not with us.

• 20. RETURN, REFUND OR EXCHANGE POLICY

- The Company provides You a return, refund or exchange opportunity on your purchase in the event you are unhappy you're your purchase provided You meet with the following conditions: (a) The request for return, exchange or refund should be raised within days as provided at
  Policies - Refund and Exchange;
  (b) The price tag and any other identification tag, the invoice and the original packing must be intact and sent back; (c) The product should not have been used or should not have any dirt or scratches or tear or in short should not be rendered unsellable; (d) You need to mention your order number, the date of order and your date of receipt; (e) Ensure that the return package is appropriately sealed and sent to the Company as any damage in transit will continue to be your responsibility and this policy will cease to be applicable; (f) The Company has a dedicated team which will check the returned products and their decision of your request will be final to accept or reject; (g) In case your request is accepted by our team, we would refund you an amount upto Rs. 100 towards the shipping cost or provide you with a gift voucher; (h) To request for a return, refund or exchange, please contact our customer care at1800-202-4444or mail us at support@lenskart.com. and we will get in touch with you. Following are the additional requirements for specific products: (a) For boxes in which the product is stored: Ensure all components are intact included any beads, threads, glass motifs, zips, buckles, etc. The boxes must be unwashed and there should no stains. (b) For lenses: Ensure no scratches are made. Lens should remain intact and must be returned with all the original box, instructions, guarantee and any other extras or complimentary offers, if any. (c) For glasses: Ensure no scratches are made. The frames should not be bent or twisted. All screws and any embedment should remain intact and must be returned with all the original box, instructions, guarantee and any other extras or complimentary offers, if any. The refund, return or exchange process will be initiated only after we have received the product/s in the condition as mentioned above. As stated You could either get a refund of cash or exchange it for a voucher. If this is not applicable, You could exchange the purchase product for a different product of the same value or a higher value. No difference will be paid in case the exchange is made for a product of a lower value. If the exchanged product selected is of a price higher than the original item, any price difference will be paid by you. The option will be communicated either via an e-mail provided by You to us or through a contact number which You have notified us or through our app. The Company is not responsible for any incorrect or mis-leading contact details. You will have a period of 7 (seven) days to confirm Your decisionabout refund or exchange to us. In the event we do not receive any communication from You then your opportunity to obtain a refund, or exchange will lapse. Apart from these, in the case the original manufacturers/producer/reseller provide any specific warranty, then, those will be applicable subject to your compliance with the warranty terms mentioned therein. With respect to the warranty offered by the original manufacturer /producer/reseller, the Company would not be responsible or liable for the same. Your claims will have to be raised with the original manufacturer /producer/reseller. If feasible, the Company may provide reasonable assistance in this regard. This policy is only for customers in India and we won't be able to provide exchange, returns or refunds to our international customers due to prohibitive shipping costs.

- Notwithstanding the above, on cash on delivery orders whether online or through stores, refunds will not be issued.

- Customers may request to exchange a purchased item for another product. In such cases, if the exchange product selected by the Customer is priced lower than the original item, any price difference will not be refunded. However, if the exchanged product selected by the Customer is price higher than the original item, any price difference will be paid by the Customer.

- Orders placed using the Split Payment option are not eligible for returns or refunds under any circumstances. Customers can cancel their order before dispatch. Once an order has been dispatched, cancellation will no longer be allowed. Exchanges for Split Payment orders are allowed as per standard exchange policies mentioned in the T&C doc.

21. SECURITY AND PRIVACY

- The Company knows that You care how information about You is used and shared, and we appreciate Your trust that we will do so carefully and sensibly. We let You retain as much control as possible over Your personal information. However, You may not visit and use our site at anytime without telling us who You are or revealing the required information about Yourself. To the Company, our most important asset is our relationship with You. We are committed to maintaining the confidentiality, integrity and security of any personal information about our users. We are proud of our privacy practices and the strength of our site security and want you to know how we protect Your information and use it to provide to You the services. This notice describes our privacy policy. By visiting this Website, You are accepting the practices described in this Privacy Policy. (a) Information You

Give Us: We receive any information You enter on our Website or give us in any other way. However, we do not store any personal sensitive information on our server. They remain with You on Your system. You can choose not to provide certain information, but then You might not be able to take advantage of many of our features. We use the information that You Provide for such purposes as responding to your requests, customizing future commercial transactions, improving our data base, and communicating with You and utilising/exploiting/disclosing, without prejudice to any of Your other rights, the same for any other, whether commercial or non-commercial purpose which the Company in its sole discretion considers necessary for its business purposes or otherwise. You can add or update certain information. When You update information, we usually keep a copy of the prior version for our records. (b) Automatic Information: We receive and store certain types of information whenever You interact with us. Our server logs Your activities for various diagnostic and analytical purposes. However, other than the IP address of Your machine from where You are accessing the Service, there are no other personal information maintained by the Company in the logs. (c) E-mail Communications: To help us make e-mails more useful and interesting, we may request to receive a confirmation when You open e-mail from Your end if Your computer supports such capabilities. (d) Sharing of Information Received by the Company: You can tell when another business is involved in Your transactions, and we share, use or, disclose customer information related to those transactions with that business. (e) Business Transfers: As we continue to develop our business, we might be acquired completely or merge with any other Company. In such transactions, customer information generally is one of the transferred business assets. In such a case, we will intimate to You of the same and ensure the protection of Your information as per these policies and guidelines. (f) Protection of the Company and Others: We release account and other personal information when we believe release is appropriate to comply with law; enforce or apply our Terms and Conditions and other agreements; or protect the rights, property, or safety of Company, our users, or others. This includes exchanging information with other companies and organizations for fraud protection and other similar matters.

22. SECURITY OF INFORMATION

- We work to protect the security of your information during transmission by using Secure Sockets Layer (SSL) software, which encrypts information You input. We constantly re-evaluate our privacy and security policies and adapt them as necessary to deal with new challenges. We do not and will not sell or rent Your personal information to anyone, for any reason, at any time, unless it is in (i) in response to a valid legal request by a law enforcement officer or government agency or (ii) when You have explicitly or implicitly given Your consent, or (iii).utilize the same for some statistical or other representation without disclosing personal data. We only reveal those numbers of Your account as required to enable us to access and provide You the required services relating to Your accounts. We make every effort to allow You to retain the anonymity of Your personal identity and You are free to choose a Login ID email address and password that keeps Your personal identity anonymous. Access to Your Registration Information and Your personal financial data is strictly restricted to those of our Company employees and contractors, strictly on a need to know basis, in order to operate, develop or improve the Service. These employees or contractors may be subject to discipline, including termination and criminal prosecution, if they fail to meet these obligations. With the exception of a Login ID in the form of an email address, which may be provided on an anonymous basis, and Your Third Party Account Information, which is required for providing the services, the Company does not require any information from You that might constitute personally identifiable information. It is important for You to protect against unauthorized access to Your password and to Your computer. Be sure to sign off when finished using a shared computer. As described in this Agreement and with Your consent, the Company will from time to time connect electronically to Your online bank, credit card and other online financial accounts to process Your Order. Conditions of Use, Notices, and Revisions: If You choose to visit this Website, Your visit and any dispute over privacy is subject to this Agreement, including limitations on damages, arbitration of disputes, and application of the law of the Republic of India. If You have any concern about privacy at this Website, please send us a thorough description at –Lenskart Solutions Limited (formerly known as Lenskart Solutions Private Limited), Plot No. 151, Okhla Industrial Estate, Phase-III, New Delhi-110020 and we will try to resolve it. Ourbusiness changes constantly. This Notice and the Terms of Membership will change also, and use of information that we gather now is subject to the Privacy Policy in effect at the time of use. We may e-mail periodic reminders of our notices and conditions, unless You have instructed us not to, but You should check our Website frequently to see recent changes.

23. DISCLAIMER

- THE CONTENT AND ALL SERVICES ASSOCIATED WITH THIS WEBSITE OR PROVIDED THROUGH THE SERVICE ARE PROVIDED TO YOU ON AN “AS-IS” AND “AS AVAILABLE” BASIS. THE COMPANY MAKES NO REPRESENTATIONS OR WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, AS TO THE CONTENT OR OPERATION OF THIS WEBSITE OR OF THE SERVICE. YOU EXPRESSLY AGREE THAT YOUR USE OF THE SERVICE AND PURCHASE OF THE PRODUCTS IS AT YOUR SOLE RISK. THE COMPANY MAKES NO REPRESENTATIONS, WARRANTIES OR GUARANTEES, EXPRESS OR IMPLIED, REGARDING (i) THE ACCURACY, RELIABILITY OR COMPLETENESS OF THE CONTENT ON THIS WEBSITE OR (ii) OF THE SERVICE AND PRODUCTS AND EXPRESSLY DISCLAIMS ANY WARRANTIES OF NON-INFRINGEMENT OR FITNESS FOR A PARTICULAR PURPOSE. THE COMPANY ENGAGES AND EMPLOY THE BEST METHODS TO SAFEGUARD AND PROTECT AGAINST VIRUSES, INFECTION., ETC, HOWEVER, DESPITE SUCH BEST EFFORTS, THE COMPANY MAKES NO REPRESENTATION, WARRANTY OR GUARANTEE THAT THE CONTENT THAT MAY BE AVAILABLE THROUGH THE SERVICE IS FREE OF INFECTION FROM ANY VIRUSES OR OTHER CODE OR COMPUTER PROGRAMMING ROUTINES THAT CONTAIN CONTAMINATING OR DESTRUCTIVE PROPERTIES OR THAT ARE INTENDED TO DAMAGE, SURREPTITOUSLY INTERCEPT OR EXPROPRIATE ANY SYSTEM, DATA OR PERSONAL INFORMATION.

24. LIMITATION OF LIABILITY

- THE COMPANY SHALL IN NO EVENT BE RESPONSIBLE OR LIABLE TO YOU OR TO ANY THIRD PARTY, WHETHER IN CONTRACT, WARRANTY, TORT (INCLUDING NEGLIGENCE) OR OTHERWISE, FOR ANY INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, EXEMPLARY, LIQUIDATED OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFIT, REVENUE OR BUSINESS, BUSINESS INTERRUPTION, LOSS OF PROGRAMS OR INFORMATION, OR LOSS OF SAVINGS, OR ANY OTHER DAMAGES ARISING - IN ANY WAY, SHAPE OR FORM - OUT OF THE AVAILABILITY, USE, RELIANCE ON, OR INABILITY TO UTILIZE THE SERVICE ARISING

IN WHOLE OR IN PART FROM YOUR ACCESS TO THIS WEBSITE, YOUR USE OF THE SERVICE, YOUR PURCHASE OF PRODUCTS THROUGH THE WEBSITE OR THIS AGREEMENT, EVEN IF THE COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

25. INDEMNITY BY YOU

- You shall defend, indemnify and hold harmless the Company and its officers, directors, shareholders, and employees, from and against all loss, damages, claims and expenses, including but not limited to attorneys fees, in whole or in part arising out of or attributable to any breach of this Agreement by You, any misrepresentation or misuse of the Service offered to You or any negligent or unreasonable or inappropriate use of the Website or the Services.

26. TERMINATION

- This Agreement to be applicable and shall be binding on the parties, i.e., You and the Company, unless terminated as specified below: (a) by You, by providing a written notice of at least 3 (three) business days; (b) closure of Your account by the Company or You for any reason immediately; (c) The Company may terminate this Agreement and close Your account if it comes to the knowledge of the Company that You have breached any of these terms and conditions, whether intentionally or by implication; (d) The Company may terminate the Agreement, it is so required to be one by an express direction of law. Please use the following address for all communication: Plot No. 151, Okhla Industrial Estate, Phase-III, New Delhi-110020. The Company hereby expressly states that this Service (including, without limitation, the underlying network, system, software, servers, various directories and listings, various message and news and bulletin boards, blogs, tools, information and databases) is intended for End Users who are legally permitted to enter into a contract. This Service is not intended for the use of minors or people who are not permitted to enter into a valid and binding contract. In the event if it comes to the attention of the Company, from authentic and valid resources, that a particular End User does not meet this criteria, then, the Company will forthwith close the account of the said End User and will delete all information and content which is relating to that End User without any obligation or liability towards such End User from the Company's records.

27. JURISDICTION

- The Company controls and operates this Website/s from its registered office in New Delhi, India, and makes no representation that these materials are appropriate or available for use in other locations. If You use this Website/s from other locations, You are responsible for compliance with applicable local laws. This Agreement shall be treated as though it were executed and performed in New Delhi, India and shall be governed by and construed in accordance with the local domestic laws of India (without regard to conflict of law principles). All legal proceedings arising out of or in connection with this Agreement shall be brought solely in New Delhi, India. All disputes that may arise shall be resolved in accordance with rules specified under the Indian Arbitration and Conciliation Act, 1996 and venue for arbitration shall be New Delhi. The courts in New Delhi shall have the sole jurisdiction regarding the subject matter of this Agreement.

28. MISCELLANEOUS

- 1. The language in this Agreement shall be interpreted as to its fair meaning and not strictly for or against either party. 2. Should any part of this Agreement be held invalid or unenforceable, that portion shall be construed consistent with applicable law and the remaining portions shall remain in full force and effect without being impaired or invalidated in any way. 3. To the extent that anything in or associated with the Website is in conflict or inconsistent with this Agreement, this Agreement shall take precedence. 4. Failure of the Company to enforce any provision of this Agreement shall not be deemed a waiver of such provision nor of the right to enforce such provision. 5. This Agreement may only be amended by either the same electronic means as were used to enter into this Agreement or in a writing that specifically refers to this Agreement, executed by both parties hereto. 6. Lenskart Solutions Limited (formerly known as Lenskart Solutions Private Limited) sells products under various brands & sub-brands (including its own brands such as John Jacobs and others).

29. TERMS AND CONDITIONS FOR EYE TESTING APPOINTMENT

1. Lenskart offers a facility for the booking of eye testing appointments. You may make appointments for eye testing by visiting
2. https://www.lenskart.com/HTO/
   or dialling
3. 1800-102-6886
   1.By making an appointment, you are confirming that: (i) You consent to an executive engaged by us to visit and be present at the premises designated by you for the purpose of eye testing and further, to pay any charges associated with such eye testing; (ii) You will be available to attend in person at the designated premises at the chosen date and time; (iii) The information provided by you to us while making the appointment and also the feedback and inputs provided by you to the executive is true and accurate; (iv) You consent to us contacting you in connection with the eye testing appointment.

4. The calls made by you for the purpose of booking the eye testing appointment may be recorded for quality checking and feedback purposes.

5. Please note that our executive will not undertake any eye examination and recommend you to an Ophthalmologist in case of the following: (i) If the executive is not able to achieve 6/6 Vision (best-corrected visual acuity) in any eye; (ii) If the executive sees any abnormality in cornea or lid (external eye structures) like scar, excessive redness, discharge, watering which are indicative of infection/injury; (iii) If your blood sugar or hypertension is not controlled; (iv) If your vision is not improving with pin hole test; (v) If the executive is unable to get a reading with spot vision and also your previous prescription or power of glasses is not available;

(vi) Children below the age of 12 years; (vi) Cases of glaucoma.

6. The refraction done and/ or a prescription given is not a complete eye-check up and we do not prescribe any medicine/ eye drops.. This check-up will not detect any ailments related to the eyes. The executive shall undertake an elementary eye check which shall be limited to the following: (i) External examination of the eye with torch light; (ii) Mobility of the eyes in different gaze; (iii) Near point of convergence assessment; (iv) Assessment of vision; (v) Refractive error assessment; (vi) Providing prescription; (vii) Suggesting spectacle lens and frames as per your requirement.

7. You may provide us with preferred time slots while making the appointment. The executive will use reasonable endeavours to keep any appointment you make with us for eye testing but we cannot guarantee that the executive will arrive on time in each case. If the executive is delayed, he or she will try to contact you a reasonable time in advance to let you know of any expected delay. From time to time, due to unavoidable reasons, we may also have to re-schedule an appointment. In such an event, we will try to re-schedule another appointment as soon as reasonably possible. We will not be responsible to you for any delay in keeping appointments or if we have to re-schedule an appointment. We will not be responsible if we are impaired or stopped from carrying out the eye testing by you for any reason whatsoever or are otherwise unable to provide carry out the eye testing as a result of any event that is outside our reasonable control

8. You hereby authorise the executive to enter the designated premises (provided by you at the time of making the appointment) for the purpose of conducting the eye test. If the designated premises are not reasonably accessible to the executive, you will have the right to designate an alternate premise where the eye test may be conducted. We reserve the right to cancel any eye testing appointments which are not reasonably accessible to the executive.

9. You agree to provide our executive with a safe working environment, working space, electrical power and any other facilities required for the purpose of conducting the eye test. You acknowledge that the executive may be an independent contractor or an employee. All our executives are certified Optometrists or Refractionists. You further acknowledge that we will not have any liability or claims that arise out of the actions of the executive. The results of the eye tests are based on the input provided by you and is subject to acceptable variance limits.

10. In no event shall we be liable for damages of any kind, including, without limitation, any direct, special, indirect, punitive, incidental or consequential damages including, without limitation, any loss or damages in the nature of, or relating to, lost business, medical injury, personal injury, wrongful death, improper diagnosis, inaccurate information, improper treatment or any other loss incurred in connection with you availing the eye testing appointment. The foregoing limitation shall apply even if we knew of or ought to have known of the possibility of such damages.